

TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

June 18, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	25-01505083 <i>Alvarado vs. Culture Stanton Store, Inc.</i>	1) Demurrer to Complaint 2) Motion to Strike Portions Of Complaint Motion 1: Demurrer Defendant Culture Stanton Store, Inc.’s Demurrer to the Complaint is OVERRULED. Defendant demurs to the first, third and sixth causes of action for disability discrimination, failure to provide reasonable accommodations and wrongful termination in violation of public policy, respectively. As an initial matter, the Court notes that the demurrer incorrectly refers to the disability discrimination claim as the second cause of action rather than the first. Defendant’s memorandum of points and authorities, however, correctly refers to it as the first cause of action. 1st Cause of Action - Disability Discrimination The California Fair Employment and Housing Act (FEHA) prohibits employment discrimination on the basis of “physical disability, mental disability, . . . medical condition . . .” (Gov. Code, § 12940, subd. (a).) To establish discrimination under section 12940, subdivision (a), the plaintiff must show they (1) suffered from a disability, (2) were otherwise qualified to do the job (i.e. could perform the essential functions of the job with or without reasonable accommodation), and (3) was subjected to an adverse employment action because of the disability. (Arteaga v. Brink’s, Inc. (2008) 163 Cal.App.4th 327, 344-345; Green v. State of California (2007) 42 Cal.4th 254, 260.) Defendant argues the Complaint fails to allege Plaintiff (1) suffered from a qualifying disability; (2) could perform the essential duties of the job with or without reasonable accommodations; and (3) was subjected to an adverse employment action because of the disability since the Complaint does not allege Plaintiff informed Defendant of her qualifying disability. Under FEHA, a “physical disability” includes any physiological condition that affects the musculoskeletal system and limits a major life activity, such as walking or working (Gov. Code, § 12926, subd. (m)(1); see also Hobson v. Raychem Corp. (1999) 73 Cal.App.4th 614, 628, disapproved of on other grounds by Colmenares v. Braemar Country Club, Inc. (2003) 29 Cal.4th 1019, [finding major life activities includes: “caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning, and working”]). Here, the Complaint alleges a physiological condition that affects Plaintiff’s musculoskeletal system and limits her ability to walk. Namely, the Complaint alleges “on or about April 13, 2025, Plaintiff began to experience severe back spasms which began to impact her everyday life. Due to Plaintiff’s back spasms, Plaintiff had difficulty being mobile. Throughout the week, Plaintiff was visibly in chronic pain as she struggled to walk and complete routine tasks.” (Complaint ¶13.) “At all times relevant to this action, Plaintiff was a member of a protected class within the meaning of CAL. GOV’T CODE §§ 12940(a), 12926(m)

because of her disability and/or being regarded as disabled.” (Compl., ¶ 24.)

These allegations are sufficient at the pleading stage to allege Plaintiff suffered from a disability under FEHA.

As to pleading Plaintiff could perform the essential functions of the job with or without reasonable accommodation, the Complaint alleges “[d]uring Plaintiff’s shifts from on or about April 19, 2025, through April 20, 2025, Plaintiff began to experience side effects from the epidural she was administered. Plaintiff was suffering from a fever, nausea, and headaches. Due to the 4-20 weekend, Plaintiff was not permitted to leave work early due to how busy the store was.” (Compl., ¶ 16.) These allegations are sufficient at the pleading stage to allege Plaintiff could perform the essential duties of the job without a reasonable accommodation.

As to pleading an adverse employment action because of Plaintiff’s disability, the Complaint alleges that during the week of April 13, 2025, Plaintiff was “visibly in chronic pain” due to the severe back spasms to the extent that “staff members would approach Plaintiff to express concern for her health” and “they would inform Defendant that Plaintiff was not in the best condition to be on the floor working.” (Compl., ¶ 13.) Plaintiff sought treatment from her doctor on or about April 17, 2025, who administered an epidural for her pain and advised Plaintiff to remain off work for one week. (Compl., ¶ 14.) However, Plaintiff requested to be off for only a few days due to fear of retaliation by Defendant for missing the “4-20” weekend since Defendant, a cannabis company, would be extremely busy that particular week. (Compl., ¶ 14.)

Plaintiff returned to work on April 19, 2025 with her doctor’s permission and shortly thereafter provided all applicable medical documents to manager Stephanie and human resources. (Compl., ¶ 14.) On or about April 23, 2025, Plaintiff went to the emergency room due to headaches, nausea, and back spasms; “[t]hereafter, Plaintiff informed human resources of her emergency room visit and that she that she would not be able to attend work . . . On or about April 26, 2025, Plaintiff was issued a write up by manager Jennifer Lopez (‘Ms. Lopez’) for her alleged behavior and inconsistent mood swings. Thereafter, Plaintiff expressed her dissatisfaction with the write-up she was issued . . . This had been the first that Plaintiff’s behavior had been an issue” (Compl., ¶ 17.)

On or about May 15, 2025, Plaintiff requested a medical leave of absence per her doctor's recommendation to begin on or about May 30, 2025 and would provide all applicable medical documentation to Defendant upon receipt from her doctor. On or about May 20, 2025, Defendant informed Plaintiff that they do not offer FMLA but would review the options available to Plaintiff upon receipt of Plaintiff’s medical documents. (Compl., ¶ 18.) “On or about May 29, 2025, Plaintiff expressed concerns of retaliation to human resources representative Alysia Gordy . . . from Stephanie and management . . .

Less than a week later, on or about June 4, 2025, Plaintiff was informed by Defendant that she was being laid off due to budget cuts/low sales. Plaintiff was the only employee laid off.” (Compl., ¶ 19.) “Defendant unlawfully discriminated against Plaintiff, as previously alleged, on the basis of her disability and/or being regarded as disabled.” (Compl., ¶25.) “Defendant was substantially motivated to terminate Plaintiff because of her disability, being regarded as disabled, going on a medical leave, and requesting accommodations.” (Compl., ¶ 26.)

These allegations are sufficient at the pleading stage to allege Defendant was on notice of Plaintiff’s qualifying disability and subjected Plaintiff to an adverse employment action because of it.

Accordingly, the demurrer to the first cause of action is OVERRULED.

3rd Cause of Action - Failure to Provide Reasonable Accommodations

“Under section 12940, it is an unlawful employment practice ‘to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee’ unless the employer demonstrates doing so would impose an undue hardship. (§ 12940, subd. (m).) The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability.” (Wilson v. County of Orange (2009) 169 Cal.App.4th 1185, 1192.)

Defendant contends the third cause of action fails to allege all three elements. As discussed above, the Complaint adequately alleges Plaintiff has a disability covered by the FEHA (Compl., ¶ 13), Defendant was aware of Plaintiff’s disability (¶¶ 13, 14, 17, 18, 47), and Plaintiff can perform the essential functions of the position (¶ 16). As to pleading Defendant failed to reasonably accommodate Plaintiff’s disability, the Complaint alleges Plaintiff requested an accommodation in the form of a medical leave of absence but was terminated a few days after expressing her fear of retaliation from Stephanie and management. (Compl., ¶¶ 18, 19, 47; see Hanson v. Lucky Stores, Inc. (1999) 74 Cal.App.4th 215, 226 [“a finite leave can be a reasonable accommodation under FEHA, provided it is likely that at the end of the leave, the employee would be able to perform his or her duties.”].)

These allegations are sufficient to allege failure to provide a reasonable accommodation.

Therefore, the demurrer to the third cause of action is OVERRULED.

6th Cause of Action - Wrongful Termination in Violation of Public Policy

“The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the

discharge caused the plaintiff harm.” (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 154.)

Defendant contends the sixth cause of action fails to sufficiently allege the third element because Plaintiff has not alleged a policy to serve as the basis for her wrongful termination or that her termination was substantially motivated by a violation of public policy.

The Complaint alleges “Defendant’s conduct as previously alleged was in retaliation for Plaintiff’s assertion of rights under CAL. GOV’T CODE §§12900 et seq.” (Compl., ¶ 81.) “Plaintiff’s assertion of her rights under CAL. GOV’T CODE §§12900 et seq. was a substantial motivating reason for Defendant’s decision to terminate Plaintiff.

Defendant’s conduct was a substantial factor in causing harm to Plaintiff as set forth herein.” (Compl., ¶ 82.) “CAL. GOV’T CODE §§12900 et seq. evinces a policy that benefits society at large, was well-established at the time of Plaintiff’s discharge, and is substantial and fundamental.” (Compl., ¶ 83.) “Defendant’s wrongful termination of Plaintiff’s employment was substantially motivated by her disability, regarding her as disabled, serious health condition, going on a medical leave, and requesting accommodations as previously pled herein.” (Compl., ¶ 84.) Further, as discussed above, the Complaint sufficiently alleges a cause of action for disability discrimination. “[D]isability discrimination can form the basis of a common law wrongful discharge claim.” (City of Moorpark v. Superior Court (1998) 18 Cal.4th 1143, 1161.) This is sufficient to allege a violation of public policy.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED**.

Motion 2: Motion to Strike

Defendant Culture Stanton Store, Inc.’s unopposed Motion to Strike is **DENIED**.

Defendant moves to strike punitive damages from the complaint.

Defendant argues the Complaint fails to allege facts establishing “oppression, fraud, or malice” on the part of Defendant. Defendant also argues the Complaint fails to allege that the individuals with whom she spoke about leave were officers, directors, or managing agents or identify the individual(s) who informed her of her termination.

Civil Code section 3294, subdivisions (a) and (b) provide:

(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and

		employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation. “[T]he mere characterization of the conduct challenged as willful, reckless, wrongful and unlawful is not of itself sufficient to charge the malice in fact required to sustain a cause of action for punitive damages.” (Gambos v. Ashe (1958) 158 Cal.App.2d 517, 529. However, doing so “is not objectionable when sufficient facts are alleged to support the allegation.” (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6–7.) Therefore, “[i]n order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Ibid.) Here, the Complaint adequately alleges facts at paragraphs 13-20, 30-32, 41-42, 52-53, 64-65, 76-77, 88-89 that could, if proven, support a claim for punitive damages against Defendant based on willful and conscious disregard for Plaintiff’s rights. The motion is DENIED. Defendant is ordered to file an answer within 10-days.
3	24-01393857 <i>Bank Of America, N.A. vs. Chadha</i>	Motion to Vacate Plaintiff Bank of America, N.A.’s Motion to Vacate Dismissal and Enter Judgment Pursuant to Stipulation of the Parties is CONTINUED to 7/2/26 for Plaintiff to submit an updated amount of judgment to be entered. <u>Legal Standard:</u> Code of Civil Procedure section 664.6 states, “(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” <i>Hernandez v. Board of Education</i> (2004) 126 Cal.App.4th 1161, 1175–1176 (cleaned up), explains:

“Prior to the enactment of section 664.6, a party seeking to enforce a settlement agreement had to file a new action alleging breach of contract and seeking either contract damages or specific performance of the settlement terms, or alternatively had to supplement the pleadings in a pending case. [Citations.] Although a summary judgment motion could be filed based on the newly pleaded contract or specific performance claim, summary judgment could be granted only if the opposing party failed to raise a triable issue of fact. Expedient enforcement of a settlement agreement was therefore not always possible. Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit. [Citation] The power of the trial court under Code of Civil Procedure section 664.6, however, is extremely limited. Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment [citations], nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon. For this reason, the appellate court in *Weddington*, invalidated a judgment entered under Code of Civil Procedure section 664.6 that imposed a license agreement on one party because the terms of the license were not reflected in the writing signed by the parties. A settlement agreement is simply a contract. The retention of the trial court's jurisdiction to enforce the settlement agreement is no different than allowing a person with a contract with the school district to sue it for breach. The court is powerless to impose on the parties more restrictive or less restrictive or different terms than those contained in their settlement agreement.”

Application:

Here, the settlement agreement stipulates the Court shall retain jurisdiction under Code of Civil Procedure section 664.6 and shall enter judgment on the settlement if Defendant defaults. (Ex. 1, ¶ 7.)

Plaintiff's counsel declares that in May 2024, the parties entered a settlement agreement in which Defendant would make monthly payments to Plaintiff through November 2026 and judgment would not be entered so long as Defendant was making payments.

The monthly payments were to consist of \$500/month from May 2024 – April 2025, \$1,750/month from May 2025 – October 2026, and a final payment of \$285.31 in November 2026 for a total of \$37,785.31. If Defendant made 24 of 31 payments, then Defendant may deduct the remaining payments of \$10,785.31 from the remaining balance. (Plaintiff's Ex. 1.)

If Defendant failed to make timely payments, the parties stipulated the Court was authorized to enter judgment in the amount of \$37,785.31 minus payments received. (Ex. 1.) Plaintiff's counsel declares that as of October 2025, Defendant defaulted because the last payment made was in July 2025. Plaintiff seeks entry of judgment in the remaining amount of \$31,336.37 (including Plaintiff's court costs of \$1,088.17).

		Defendant filed an opposition on 4/6/26 which asserts that they have attempted to comply with the settlement agreement, but the collection agency incorrectly charged \$1,000 in March 2025, which was returned by Defendant's bank. Defendant also asserts the collection agency incorrectly stated that starting in April 2025 the monthly payment would change to \$1,750.00. Defendant states this was double the agreed-upon monthly payment of \$500 at the time. Defendant submits records which appear to show Defendant resumed making \$500 payments between November 2025 and February 2026. However, Plaintiff's Exhibit 2 reflects \$500 payments from May 2024 through May 2025, then a \$1,000 debit on 5/23/25 which was returned the same day, after which payments resumed in the amount of \$500/month through 7/23/25. Therefore, the admissible evidence shows that although there was an error in May 2025, it was promptly corrected and monthly payments resumed in the amount of \$500, after which Defendant ceased making payments in August 2025. Defendant has not explained how the May 2025 error caused them to stop making payments in August 2025 or excused such failure. Therefore, Plaintiff has sufficiently established Defendant's breach of the settlement agreement and the Court intends to enter judgment on the parties' settlement pursuant to Code of Civil Procedure section 664.6. However, the amount of judgment to be entered is unclear to the Court, since it appears Defendant resumed payments after allegedly ceasing payments in August 2026, and Plaintiff has not submitted a reply brief. Plaintiff's counsel shall file and serve a reply declaration, not to exceed five pages, no later than 6/26/26, stating what the total amount to be entered for judgment is as of the present date, and explaining the basis for their calculation. If the reply declaration is not timely filed, the motion will be denied without prejudice.
4	24-01420130 Carr vs. Siefkin	1) Motion to Be Relieved as Counsel of Record 2) Motion to Compel Answers to Form Interrogatories 3) Motion to Compel Answers to Special Interrogatories 4) Motion to Compel Production 5) Motion to Compel Response to Requests for Admissions The motions of plaintiff Natalie T. Carr for orders compelling responses to the second sets of form and special interrogatories and the first set of requests for production propounded to defendant Gregory Siefkin, deeming the matters in the first set of requests for admitted, and imposing a total monetary sanction of \$6086.25 against defendant and his attorney of record is GRANTED as specified below. Defendant is to serve verified responses to the second sets of form and special interrogatories and the first set of requests for production without objection and within 20 days of written notice of ruling.

		The matters in the first set of requests for admissions are deemed unless defendant serves a verification to the previously served response at or before the hearing A total monetary sanction of \$2340 is imposed against defendant and his attorney of record, payable to plaintiff and her attorney of record within 30 days.
9	24-01445830 <i>Gharibian vs. Volkswagen Group of America, Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Production 4) Motion to Deem Facts Admitted Motion No. 1 - Motion to Compel Responses to Form Interrogatories, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Form Interrogatories, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections. The Court notes Defendant appears to have inadvertently filed two Oppositions to the Motion to Compel Responses to Special Interrogatories, Set One, rather than a separate Opposition to the Motion to Compel Responses to Form Interrogatories, Set One. (ROA 73 and 75.) The Court ORDERS Defendant to file a corrected Opposition per code prior to the continued hearing date. Motion No. 2 - Motion to Compel Responses to Special Interrogatories, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Special Interrogatories, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections. Motion No. 3 - Motion to Compel Responses to Requests for Production, Set One Plaintiff Levon Joseph Gharibian's Motion Compel Responses to Requests for Production, Set One as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections.

		Motion No. 4 - Motion for an Order Deeming Truth of Matter in Requests for Admission, Set One, Admitted Plaintiff Levon Joseph Gharibian's Motion for an Order Deeming Truth of Matter in Requests for Admission, Set One, Admitted, as to Defendant Volkswagen Group of America, Inc. is CONTINUED to 12/17/26 at 10:00 a.m. in Department C33 to be heard together with Defendant's Motion for Relief from Waiver of Objections.
10	24-01437581 <i>Guzman vs. Gordon</i>	Motion to Quash Subpoena Plaintiff Itzel Britani Ortiz Guzman's Motion to Quash Subpoenas for Business Records (ROA 39) is GRANTED. Plaintiff seeks to quash Defendants' subpoenas to the following third parties: 1. Anaheim Global Medical Center (Medical) 2. Patrick A. Black, D.C. (Medical, Billing & X-rays) 3. Kenneth R. Grabow, M.D. (Medical, Billing & X-rays) 4. Open Advantage MRI (Medical, Billing & X-rays) 5. Pegasus Surgery Center (Medical, Billing & X-rays) 6. Interinsurance Exchange of the Automobile Club (Insurance) 7. Anaheim Global Medical Center (Billing) 8. Anaheim Global Medical Center (X-ray) Plaintiff also seeks sanctions of \$3,435.00. Upon a motion reasonably made by a party, the court may quash, modify or direct compliance with a subpoena for production of documents. The court "may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. § 1987.1(a) & (b).) Plaintiff asserts the foregoing subpoenas, issued in October 2025, are overbroad in that they broadly seek Plaintiff's medical records for ten years prior to the date of the subject collision on 12/12/22. Plaintiff's counsel served objections and sent a meet and confer letter to Defendant's counsel on 11/18/25. Defendants' counsel had not responded to the letter as of 11/25/25. Defendants have not filed a timely opposition to the motion, which was served on 11/25/25. The motion is granted. The Court finds the subpoenas broadly seeking medical records from 10 years prior to the date of the collision is overbroad. Defendants' counsel is ordered to meet and confer with Plaintiff's counsel before service of any amended subpoena to these providers.

		Plaintiff's request for sanctions is granted in the amount of \$3,435.00. Defendants' counsel has failed to meet and confer or oppose the motion to show there was a substantial justification for their position. (Code Civ. Proc. §§ 1987.2, 2023.010.)
12	24-01402534 <i>Rascon vs. Kia America, Inc.</i>	Motion for Attorney Fees Plaintiff Savannah Rascon's Motion for Attorney's Fees is GRANTED in the amount of \$32,973. Plaintiff's request for costs is denied. (Cal. Rules of Court, rule 3.1700, subd. (a).) <u>Hourly Rate</u> "The reasonable hourly rate is that prevailing in the community for similar work." (<i>PLCM Group, supra</i>, 22 Cal.4th 1084, 1095.) "There is no requirement that the reasonable market rate mirror the actual rate billed . . . The reasonable market value of the attorney's services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (<i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 701 [cleaned up].) Plaintiff is seeking fees of \$500/hr. and \$545/hr. for Hollins and \$600/hr. for Fhima as attorneys and \$220/hr. for Ianni as a paralegal. The Attorney Fee Survey Report provides \$569/hr. as the median fee charged in vehicle cases in the southern California area in 2017-2018. The average paralegal rate was \$120 in 2017-2018. Thus, after careful consideration of all papers and its own files and knowledge of fees in the community, the court finds the hourly rates by counsel are within the reasonable range, however, the paralegal rates are reduced to \$150/hr. <u>Reasonable Hours Spent</u> First, Defendants seeks to reduce Plaintiff's fees for mostly unspecified "clerical" work by attorneys. Summarizing repair orders is not clerical work. Further, the Court does not find any other billing entries to be purely clerical work. Thus, the reduction is denied. Second, Defendant requests a reduction of 3.8 hours of the 7.6 hours billed for drafting the Complaint, propounding discovery, and responding to Defendant's discovery. Defendant provides no evidence through its counsel's declaration of Plaintiff using templates to draft documents or respond to discovery. Thus, there is no evidence to support Defendant's argument. Therefore, the reduction is denied. Third, Defendant requests a general reduction to the 4.5 hours to draft this Motion, 4 hours to review the opposition and prepare a reply, 3 hours to prepare for and attend the hearing, and 3 hours to prepare an opposition for a motion to tax costs. Defendant did not file a motion to tax. Additionally, 3 hours is excessive to prepare for and attend the hearing. Defendant's claim the motion is also templated lacks the same

		evidence as discussed above. Finally, 4 hours to review an opposition and draft a reply is excessive. Therefore, a reduction of 6 hours or \$3,270 is granted. Fourth, Defendant seeks a reduction of the 1.2 hours billed to review the time slip entries. Review of the entries is necessary to provide the Court with accurate information to determine what hours were reasonably incurred. Thus, the reduction is denied. Fifth, Defendant's request to reduce the post-settlement billing by 32 hours without pointing to any particular billing entries is denied. The Court fails to find any entries which are improper.
13	25-01509350 <i>Wilshire Quinn Income Fund Reit, LLC vs. Laguna HW, LLC</i>	Motion to Confirm Sale Receiver Lance Miller's Motion for Approval of the Sale of the Receivership's Property is GRANTED. The Receiver, Miller, seeks to sell the property for \$5,300,000. Miller states the sale is in the best interests of the receivership estate because the sale price is favorable and the buyer has already acquired the neighboring parcel. (Miller Decl., ¶ 6.) Delay in selling the property beyond June 30, 2026 would allow the buyer to terminate the sale and will increase the receivership's costs. (Miller Decl., ¶ 8.) No party has opposed the sale. The Court exercises its discretion in considering all the facts and circumstances and the interests of justice and approves of the sale.